



CHAPTER 6.

An Act to amend the Patents and Designs Acts, 1907 to 1939, as respects the extension of the term of a patent where the patentee has suffered loss by reason of hostilities, as respects the right of the Crown to use inventions and designs, and as respects arrangements with other countries relating to inventions and designs.

[26th February 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In section eighteen of the Patents and Designs Act, 1907 (which relates to the extension of the term of a patent) the following subsection shall be inserted after subsection (6) (which relates to cases in which the patentee as such has suffered loss or damage by reason of hostilities between His Majesty and any foreign state) :—

Amendments
as to
extension of
patents where
loss by reason
of hostilities.
7 Edw. 7. c. 29.

“(7) Where an application is made under subsection (6) of this section—

(a) the power conferred on the court by the proviso to subsection (1) of this section to allow the application to be made at such time as the court may in its discretion think fit shall be exercisable free from the restriction imposed by that proviso that the time allowed must be not later than the time limited for the expiration of the patent, if the court is satisfied that the allowance of a time later than the expiration thereof is justified by the patentee's having been prevented from making the application by being on

active service or by other circumstances arising by reason of hostilities between His Majesty and any foreign state ;

(b) an order may be made notwithstanding that the term of the patent may have been previously extended, or that a new patent for the invention may have been previously granted, by one or more orders made under this section, and notwithstanding that the previous order, or one of the previous orders, may have been made otherwise than pursuant to an application under subsection (6) of this section ;

(c) the restriction imposed by subsection (5) of this section on the length of the further term for which a patent may be extended shall not have effect, but the term granted by an order, whether by way of extension or grant of a new patent, shall not exceed ten years, and, where two or more orders are made pursuant to applications under subsection (6) of this section in relation to the same invention, the aggregate of the terms thereby granted, whether by way of extension or grant of a new patent, shall not exceed ten years."

(2) In the case of a patent limited to expire after the third day of September, nineteen hundred and thirty-nine, and before the expiration of six months from the passing of this Act, an application under subsection (6) of the said section eighteen may be made at any time during the said six months, and the court may allow the application to be made at such time as the court may in its discretion think fit if the court is satisfied that the allowance of a time later than the expiration of the said six months is justified by the applicant's having been prevented from making the application by being on active service or by other circumstances arising by reason of hostilities between His Majesty and any foreign state.

Amendments
as to right of
Crown to use
inventions.

2.—(1) After subsection (1) of section twenty-nine of the Patents and Designs Act, 1907 (which relates to the right of the Crown to use patented inventions) there shall be inserted the following subsections—

"(1A) The power of a Government department under subsection (1) of this section to make, use or exercise an invention for the services of the Crown shall include power during any war period to make, use, exercise or vend an invention, upon such terms as are mentioned in the said subsection (1), for any purpose which appears to the department necessary or expedient for the efficient prosecution of any war in which His Majesty may be engaged or for the maintenance of supplies and services essential to the

life of the community; and the terms of any such agreement or licence as is mentioned in the said subsection (1) shall be inoperative so far as concerns the making, use, exercise or vending of an invention under this subsection as they are inoperative so far as concerns the making, use or exercise of an invention under that subsection.

(1B) For the purposes of the last preceding subsection the expression 'war period' means the period beginning with the third day of September, nineteen hundred and thirty-nine, and ending with the expiration of the Emergency Powers (Defence) Act, 1939, or any other period beginning with such date as may be declared by Order in Council to be the commencement, and ending with such date as may be so declared to be the termination, of a war period for the purpose of this section; and nothing in subsection (3) of this section shall affect the right to vend an invention conferred by the last preceding subsection",

2 & 3 Geo. 6.
c. 62.

and accordingly in subsection (2) of the said section twenty-nine for the words "or exercise" there shall be substituted the words "exercise or vending".

(2) After subsection (3) of the said section twenty-nine (which subsection authorises the sale of articles made in pursuance of the right of the Crown to use an invention which are no longer required for the services of the Crown) there shall be inserted the following subsection:—

"(3A) A purchaser of any articles sold in pursuance of subsection (1A) or subsection (3) of this section, and any person claiming through him, shall have, and be deemed always to have had, power to deal with the articles in like manner as if the patent for the invention were held on behalf of His Majesty."

(3) Subsection (1) of this section shall be deemed to have come into operation on the third day of September, nineteen hundred and thirty-nine.

(4) Regulation four of the Defence (Patents, Trade Marks, etc.) Regulations, 1941, is hereby revoked.

3.—(1) After section ninety-one A of the Patents and Designs Act, 1907 there shall be inserted the following sections:—

"91B.—(1) The Board of Trade may, as respects any Convention country, if they are satisfied that provision substantially equivalent to the provision to be made by or under this section has been or will be made under the law of that country, make rules empowering the comptroller to extend the time for making application under section ninety-one of this Act for the granting, in priority to other applicants, of a patent for an invention, or for the registration, in priority

Arrangements
with other
countries.

Extension
of time for
applications
under s. 91 in
certain cases.

to other applicants, of a design, in any case where the person who applied for protection in the Convention country or his legal representative or assignee has been prevented by the law, or by the action of the government, of the Convention country from making application under the said section ninety-one within the time allowed by that section.

(2) Rules made under this section—

(a) may, where any agreement or arrangement has been made between His Majesty's government in the United Kingdom and the government of the Convention country for the supply or mutual exchange of information or articles, provide, either generally or in any class of case specified in the rules, that an extension of time shall not be granted under this section unless the invention or design has been communicated in accordance with the agreement or arrangement ;

(b) may, either generally or in any class of case specified in the rules, fix the maximum extension which may be granted under this section and provide for reducing the term of any patent granted on an application made by virtue of this section, and (notwithstanding anything in section sixty-five of, or the First Schedule to, this Act) vary, with the approval of the Treasury, the times for the payment of renewal fees in respect of such a patent and the amount of such fees ;

(c) may prescribe or allow any special procedure in connection with applications made by virtue of this section ;

(d) may empower the comptroller, as respects any application made by virtue of this section, to substitute for the period of eighteen months specified in the proviso to subsection (4) of the said section ninety-one (which provides that if on an application under that section for a patent a complete specification is not accepted within eighteen months from the application, or earliest application, for protection in the Convention country, the specification shall be open to public inspection at the end of that period) such other period as appears to him expedient ;

(e) may empower the comptroller to extend, subject to such conditions, if any, as may be imposed by or under the rules, the time limited by or under the foregoing provisions of this Act for doing any act in relation to an application made by virtue of this section ;

(f) may provide for securing that the rights conferred by a patent granted or registration made on an application made by virtue of this section shall be subject to such restrictions or conditions as may be specified by or under the rules and in particular that where, otherwise than as the result of any communication made in accordance with such an agreement or arrangement as is mentioned in paragraph (a) of this subsection, and before the date of the application in question or such later date as may be allowed by the rules, either the invention has been made, used, exercised or vended, or the design applied, by any person (including a person acting on behalf of His Majesty), or application for a patent for the invention or for registration of the design has been made by any such person as aforesaid, the rights conferred by a patent granted, or registration made, upon the first-mentioned application shall be subject to such conditions and reservations for the protection of that person as may be specified by or under the rules.

91C. Where an agreement or arrangement has been made between His Majesty's government in the United Kingdom and the government of another country for the supply or mutual exchange of information or articles, and the Board of Trade are satisfied that provision substantially equivalent to the provision to be made by or under this section has been or will be made under the law of that country, the Board may make rules to secure that the communication, in accordance with the agreement or arrangement, of an invention or design, or the publication, making, use, exercise or vending of an invention, or publication or application of a design, in consequence of such communication, shall not prejudice any application for a patent for the invention or registration of the design, being an application made by a person from whom the invention or design was so communicated or the legal representative or assignee of such a person, or invalidate the grant on such an application of a patent for the invention or the registration on such an application of the design.

Provisions
as to com-
munication of
inventions and
designs under
agreements
with other
countries.

91D.—(1) Any rules made in pursuance of the last two preceding sections shall be advertised twice in the Official Journal (Patents) and shall be laid before both Houses of Parliament as soon as practicable after they are made, and if either House of Parliament, within the next forty days after any such rules have been laid before that House, resolves that the rules or any of them are to be annulled, the rules to which the resolution applies shall after the date of such resolution be of no effect, without prejudice to the validity

Provisions
as to rules
under ss. 91B
and 91C.

of anything done in the meantime under the rules or to the making of any new rules.

(2) Rules made by the Board of Trade under either of the last two preceding sections, and any order made, direction given, or other action taken under the rules by the comptroller, may be made, given or taken so as to have effect as respects things done or omitted to be done on or after such date, whether before or after the coming into operation of the rules, as may be specified in the rules."

(2) The power conferred by subsection (2) of the section ninety-one D inserted by this section to specify, in rules made under the section ninety-one B or ninety-one C so inserted, a date before the coming into operation of the rules as the date as from which the rules, and any such order, direction or action as is mentioned in the said subsection (2), will have effect includes power to specify a date before the commencement of this Act.

Short title,
citation,
printing and
interpretation.

4.—(1) This Act may be cited as the Patents and Designs Act, 1942; and the Patents and Designs Acts, 1907 to 1939, and this Act may be cited together as the Patents and Designs Acts, 1907 to 1942.

(2) A copy of the Patents and Designs Act, 1907 with the amendments effected by the amending Acts and by subsection (1) of section one and by sections two and three of this Act shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print copies of the Patents and Designs Act, 1907, in accordance with the copies so certified.

4 & 5 Geo. 5.
c. 18.
9 & 10 Geo. 5.
c. 80.
18 Geo. 5. c. 3.
22 & 23 Geo. 5.
c. 32.
1 & 2 Geo. 6.
c. 29.
2 & 3 Geo. 6.
c. 32.

(3) In this section the expression "the amending Acts" means the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, the Patents and Designs (Convention) Act, 1928, the Patents and Designs Act, 1932, the Patents, &c. (International Conventions) Act, 1938 and the Patents and Designs (Limits of Time) Act, 1939.

(4) References in any Act passed before this Act to the Patents and Designs Act, 1907 shall, unless the context otherwise requires, be construed as references to that Act as amended by the amending Acts and this Act.

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